



MICHIGAN DEPARTMENT OF ENVIRONMENTAL QUALITY
WATER RESOURCES DIVISION

www.michigan.gov/deq

NOTICE OF INTENT

FOR COVERAGE UNDER THE
NATIONAL POLLUTANT DISCHARGE ELIMINATION SYSTEM (NPDES)
FOR STORM WATER DISCHARGES ASSOCIATED WITH INDUSTRIAL ACTIVITY
By Authority of Act 451, PA 1994, Part 31

DEQ only-do not write in this space

96676-1

Submission of this Notice of Intent (NOI) constitutes notice that the party identified as Owner/Permittee requests authorization to discharge under the NPDES General Permit issued for storm water discharges associated with industrial or other activity in Michigan. The Michigan Department of Environmental Quality may deny coverage under the general permit and require submittal of an application form for an individual permit. Becoming a permittee obligates a discharger to comply with the terms and conditions of the General Permit, including **annual fee of \$260.00 will be billed each JANUARY - DO NOT SEND MONEY WITH THIS APPLICATION.** Failure to comply with these provisions may result in fines of up to \$25,000 per day and the possibility of imprisonment, in accordance with Act 451, PA 1994, Part 31.

FACILITY INFORMATION (where discharge occurs)			OWNER/PERMITEE INFORMATION		
SITE/FACILITY NAME Wexford County Landfill, LLC			COMPANY NAME Wexford County Landfill, LLC		
ADDRESS 990 U.S. Highway 131			ADDRESS 990 U.S. Highway 131		
CITY Manton	STATE MI	ZIP CODE 49663	CITY Manton	STATE MI	ZIP CODE 49663
RECEIVING WATERS North Lake			CONTACT PERSON NAME AND EMAIL ADDRESS Don Suchocki		
LATITUDE 44.349158		LONGITUDE -85.394071	CONTACT PERSON'S TELEPHONE NUMBER 231.824.6858		
1/4 of 1/4 of Section W 1/2 of the NW 1/4 of Section 34 and the E 1/2 of Section 33 Town: T 23 N Range: R 9 W (legal distribution of property, can be found on the deed)			MAILING INFORMATION (for billing) COMPANY NAME		
TOWNSHIP Cedar Creek			COUNTY Wexford		
ADDRESS 990 U.S. Highway			ADDRESS 990 U.S. Highway		
Is the facility discharge: (must complete) New ☐ or Existing ☒			CITY Manton		
Facility started operations:			STATE MI		
If existing with NPDES coverage: NPDES number(s):			ZIP CODE 49663		
TELEPHONE NUMBER (INCLUDING AREA CODE) 231.824.6858			TELEPHONE NUMBER (INCLUDING AREA CODE) 231.824.6858		

CERTIFIED STORM WATER OPERATOR NAME (INDUSTRIAL ONLY): Vicki Garon	CERTIFICATION NUMBER: (Number must look like I-*****) I-08781
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PRIMARY STANDARD INDUSTRIAL CLASSIFICATION (SIC) CODE (this information can be found in the corporate tax returns under Schedule K listed as the "Business Activity Code" or the "Manufactures Identity Code")

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TO DETERMINE THE PRIMARY INDUSTRIAL ACTIVITY, USE THE VALUE OF NET REVENUES. IF SUCH INFORMATION IS NOT AVAILABLE FOR A PARTICULAR FACILITY, THE NUMBER OF EMPLOYEES OR PRODUCTION RATE FOR EACH PROCESS MAY BE COMPARED. THE OPERATION THAT GENERATES THE MOST NET REVENUE OR EMPLOYS THE MOST PERSONNEL IS THE OPERATION IN WHICH THE FACILITY IS PRIMARILY ENGAGED.

FACILITY IS ENGAGED IN: CHECK THOSE THAT APPLY (if none apply, skip this block)

- | | |
|--|---|
| ☐ HAZARDOUS WASTE TREATMENT, STORAGE, OR DISPOSAL | ☒ LANDFILL |
| ☐ LAND APPLICATION SITE OR OPEN DUMP | ☐ STEAM ELECTRIC POWER GENERATING FACILITY |
| ☐ SEWAGE TREATMENT WORKS | COAL HANDLING? ☐ YES ☐ NO |

Any person requesting authorization to discharge from an area described below may be subject to the terms of the NPDES General Permit for storm water discharges with **required monitoring**, and should examine the requirements of that permit prior to submitting this NOI. (if none apply skip the block)

- ☐ **SECONDARY CONTAINMENT**
I (we) request to discharge storm water to a surface water of the state from a secondary containment structure installed at the facility as required by required by state or federal law.
***Request not necessary if discharging storm water to a sanitary or combined sewer system.**
- ☐ **ENVIRONMENTAL CONTAMINATION SITE**
I (we) request to discharge storm water from an area identified on Michigan's list of Sites of Environmental Contamination pursuant to the Natural Resources and Environmental Protection Act, PA 451 of 1994, Part 201(formerly 307).
***Request only necessary if storm water comes into contact with contaminated materials.**
- ☐ **OTHER SIGNIFICANT CONTRIBUTOR**
The Department of Environmental Quality has determined that the storm water discharges from this facility are a significant contributor of pollutants to waters of the state.

CERTIFICATION

State of Michigan regulations require this form be signed as follows:

Corporation: By the principal executive officer or vice president or higher, or his/her designated representative if the representative is responsible for the overall operation of the facility from which the discharge described originates.

Partnership: By a general partner

Sole Proprietorship: By the proprietor

Municipal, State, or Other Public Facility: By a principal executive officer, the mayor, village president, city or village manager, or other duly authorized employee

****Note: If the signatory is not listed above, but is authorized to sign the Application please provide documentation of that authorization.**

I certify that my facility has developed a **Storm Water Pollution Prevention Plan (SWPPP)** according to the requirements of the Storm Water General Permit.

I certify that my facility has **no unauthorized discharges**.

I certify that my facility has implemented the **non-structural controls** as described in the **SWPPP**. New facilities shall fulfill requirement when industrial activity begins.

I certify my facility has completed construction and will put into operation all **structural controls** as described in the **SWPPP**. If necessary, new facilities shall fulfill requirement when industrial activity begins.

I certify, under penalty of law, that this document and all attachments were prepared by me, or under my direction or supervision in accordance with a system to assure qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person(s) who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.

I understand that my signature constitutes a legal agreement to comply with the requirements of the appropriate NPDES General Storm Water Permit. I certify under penalty of law that I possess full authority on behalf of the legal owner/permittee to sign and submit this Notice of Intent.

Printed Name

Edward G. Ascione

Title

Member

Signature

Date

4-12-12

IF YOU HAVE ANY QUESTIONS ABOUT THE PREPARATION OF THIS FORM, PLEASE CALL 517-335-4137.

RETURN THIS COMPLETED FORM (original signatures only), AND ANY ATTACHMENTS TO:

KELLY PLOEHN
MICHIGAN DEPARTMENT ENVIRONMENTAL QUALITY
WATER RESOURCES DIVISION
525 WEST ALLEGAN STREET, 2nd FLOOR NORTH
P.O. BOX 30458
LANSING MI 48909



April 11, 2012

Our Ref.: 123-88763

Kelly Ploehn
Michigan Department of Environmental Quality
Water Bureau
2nd Floor
525 West Allegan Street
P.O. Box 30273
Lansing, Michigan 48909

RE: NPDES STORMWATER PERMIT APPLICATION

Dear Ms. Ploehn:

On behalf of our client, American Waste, Inc. (Applicant), Golder Associates Inc. is submitting this Notice of Intent for Storm Water Discharges Associated with Industrial Activities (NOI) under the National Pollutant Discharge Elimination System (NPDES). The NOI is for a new NPDES-Stormwater General Permit and Certificate of Coverage to be issued to the Applicant for the Wexford County Landfill, LLC (Facility), located at 990 US Highway 131, Manton, Michigan.

This NOI is being submitted for issuance of NPDES General Permit coverage of Storm Water from Industrial Activities. The Facility is requesting permit coverage to discharge stormwater from the existing landfill offsite to adjacent property, and ultimately to North Lake and Long Lake.

Attached please find a completed State of Michigan NPDES Notice of Intent application.

Sincerely,

GOLDER ASSOCIATES INC.

Vicki Garon, P.E.
Senior Engineer

Paul T. Sgriccia, P.E.
Principal

cc: Eddie Ascione, American Waste, Inc.

Attachments: State of Michigan NPDES Notice of Intent Application

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